

Court No. - 21

Case :- WRIT - C No. - 9710 of 2023

Petitioner :- Swamideen

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Rajendra Kumar Singh, Manoj Kumar Singh

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Sri Gaurav Singh, learned counsel for the respondent Electricity Department, prays for and is granted time to obtain instructions.

List as fresh on 3.4.2023.

In the meantime, no coercive action shall be taken in pursuance of the impugned recovery certificate.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.3.2023

Jaideep/-

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The petitioner has challenged the recovery certificates dated 7.9.2021/13.1.2022 for a sum of Rs. 1,92,974/- issued by respondent nos. 3 and 5, respectively. The recovery is in respect of electricity dues.

Learned counsel for the respondent Electricity Department, states that in case any objection is filed by the petitioner, it will be decided in terms of Clause 6.5 of the Electricity Supply Code, 2005.

Accordingly, the petition is disposed of with liberty to the petitioner to file objection against the impugned recovery within three weeks and in which event, the same will be decided by respondent no. 3 by means of a speaking order within next three weeks.

For a period of six weeks, no coercive measure shall be taken against the petitioner in pursuance of the impugned recovery and thereafter it shall abide by the decision that will be taken by respondent no. 3 on the objection/representation of the petitioner.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.4.2023

Jaideep/-